EB-1A

Extraordinary Ability

The Strategic Evidence Framework

A premium guide to understanding, organizing, and mapping EB-1A evidence across business, arts, athletics, education, and science/STEM

AiVass

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THE AIVASS MASTER GUIDE SERIES

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Edition 1.0 · Legal standards verified July 2026

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Before You Begin

Legal disclaimer — please read

This guide is an educational and strategic information product. It explains the EB-1A classification using publicly available government sources current as of July 2026. It is not legal advice, it does not address your individual circumstances, it does not create an attorney-client relationship, and it is not a substitute for advice from a licensed U.S. immigration attorney.

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A NOTE ON OUTCOMES

No guide, consultant, or attorney can guarantee a USCIS approval. What this guide can do — and does — is make sure that when your case is evaluated, it is evaluated at its full strength: correctly mapped, honestly quantified, and organized the way adjudicators actually read.

How to Use This Guide

This Master Guide is the foundation of the AiVass EB-1A library. It is written for **everyone** — first-time explorers, serious self-petitioners, and the professionals who support them. Content is layered three ways:

- **Learn** — plain-English explanations of the law, verified against official USCIS sources and cited so you can check everything yourself.
- **Apply** — field examples, checklists, and self-assessments that turn the rules into decisions about your own record.
- **Build** — strategy chapters (evidence sprints, petition structure, the AI workflow) that convert your record into a filing-ready case.

THE THREE BOXES YOU WILL SEE THROUGHOUT

Straight from the source

Blue boxes summarize or quote the controlling authority — the statute, the regulation, or the USCIS Policy Manual — so you always know what is law versus what is strategy.

Strategy note

Cream-and-gold boxes carry AiVass strategy: how strong cases are actually positioned, and where weak ones go wrong.

The bottom line

Navy boxes distill a chapter or section into the one thing to remember.

One reading rhythm works best: read Chapters 1–3 in order to install the legal framework, work through Chapters 4–5 with your own CV open, then use Chapters 6–12 as your build manual.

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CHAPTER

01

The EB-1A Opportunity

A green card for people at the top of their field — no employer, no sponsor, no lottery.

Most employment-based paths to a U.S. green card run through someone else: an employer willing to sponsor you, a labor-market test that can take years, a job you cannot leave without starting over. **EB-1A is the exception.** It is the first-preference immigrant category for people of extraordinary ability in the sciences, arts, education, business, or athletics — and it is built around a radical idea: if you can prove you are among the very best at what you do, the United States wants you here, on your own terms.

What makes EB-1A different

- **You may petition for yourself.** The regulation allows "an alien, or any person on behalf of the alien" to file — meaning you can be your own petitioner. USCIS states it plainly: "You may apply for yourself by filing a Form I-140."
- **No job offer is required.** The USCIS Policy Manual confirms an EB-1A petition "does not need to be supported by a job offer." You must intend to keep working in your field in the U.S. — but no employer, offer letter, or sponsor is needed.
- **No PERM labor certification.** EB-1 skips the Department of Labor's labor-market test entirely, removing one to two-plus years of process and all employer dependence.
- **First in line.** EB-1 is the first employment-based preference. For most countries it is "current" — meaning no visa-number wait at all once approved (India and China are the notable exceptions; see Chapter 11).
- **Premium processing available.** For an additional fee, USCIS will act on your petition within 15 business days.

> **The bottom line**
>
> EB-1A trades a higher evidentiary bar for near-total independence. You do not need permission from an employer to pursue permanent residence — you need proof.

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Who this category is really for

The phrase “extraordinary ability” intimidates people who would qualify and, occasionally, attracts people who would not. The legal definition is precise: a level of expertise indicating that you are **“one of that small percentage who have risen to the very top of the field of endeavor.”** That is a high bar — but it is a **field-relative** bar, and the field is one you help define (Chapter 7). A Nobel Prize meets it instantly. So, routinely, do:

- Founders and executives whose methods, products, or divisions changed how an industry operates — with numbers to prove it.
- Researchers and engineers whose work is highly cited, widely adopted, or embedded in products and standards.
- Artists whose exhibitions, reviews, prizes, and sales place them among the recognized names of their discipline.
- Athletes and coaches with national-team, championship, or record-level résumés — including team honors.
- Educators whose curricula, methods, or programs were adopted far beyond their own institution.

There is **no age requirement and no minimum years of experience**. The Policy Manual says directly that a beneficiary “may be very young or early in his or her career and still be able to show sustained acclaim.” What matters is acclaim — external, documented, recent.

What this guide will do for you

By the final chapter you will be able to answer, with evidence rather than hope, the only three questions that matter:

1. Which of the ten criteria can my record support today — and which can I build in the next 90–180 days?
2. Does my total story clear the “small percentage at the very top” standard, and how do I frame it so an officer sees it?
3. What exactly goes in the petition, in what order, with which exhibits — and where do professionals fit in?

> **Strategy note**
>
> EB-1A cases are rarely won by a single trophy. They are won by architecture: five to seven criteria, each modest on its own, assembled into one undeniable narrative. This guide is that architecture.

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CHAPTER

02

The Legal Framework

Three prongs, one definition, and the sources that control everything.

Everything in EB-1A flows from three texts. The statute — **INA § 203(b)(1)(A)** — creates the category. The regulation — **8 C.F.R. § 204.5(h)** — defines "extraordinary ability" and lists the evidence. And the **USCIS Policy Manual (Volume 6, Part F, Chapter 2)** tells officers exactly how to apply both. This guide was verified line-by-line against the current Policy Manual in July 2026 — when you see a blue box, you are reading the government's own framework, not our opinion of it.

The three things every petition must prove

> **Straight from the source — eligibility**
>
> **1.** You have extraordinary ability in the sciences, arts, education, business, or athletics, **demonstrated by sustained national or international acclaim**, with achievements recognized in the field through extensive documentation.
>
> **2.** You seek to enter the United States to **continue work in your area of extraordinary ability**.
>
> **3.** Your entry will **substantially benefit the United States** in the future.
>
> *— INA § 203(b)(1)(A); USCIS Policy Manual, Vol. 6, Pt. F, Ch. 2 (accessed July 2026)*

PRONG 1 · SUSTAINED ACCLAIM

"Sustained" means **maintained** — an officer will ask whether you still hold a comparable level of acclaim to the moment you first earned it. There is no fixed time window and no age limit, but a record that peaked five years ago and went silent is the single most common structural weakness in this category. The practical rule used throughout this guide: every petition needs meaningful, documented recognition **within roughly the last 24 months**.

PRONG 2 · CONTINUING IN YOUR FIELD

You must intend to keep working in the **area of your extraordinary ability** — not necessarily the same job title. USCIS's own hardest example is the athlete who becomes a coach: the Manual instructs officers

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that recent competitive acclaim, sustained into national-level coaching, can be treated as one continuing area of expertise under a totality view. Because no job offer is required, intent is shown with a personal statement, contracts, commitments, collaborator letters — or, for founders, a business plan.

PRONG 3 · SUBSTANTIAL BENEFIT TO THE U.S.

This prong is interpreted **broadly** and assessed case-by-case; the Manual's classic citation is a professional golfer whose presence was deemed a benefit given the sport's popularity. In practice, you satisfy it by connecting your future work to concrete U.S. outcomes — jobs, technology, health, culture, competitiveness — in your final-merits narrative and personal statement.

The definition that decides everything

> **Straight from the source — the standard**
>
> Extraordinary ability means "a level of expertise indicating that the individual is **one of that small percentage who have risen to the very top of the field of endeavor**." — 8 C.F.R. § 204.5(h)(2)

Read that phrase the way an officer does. **"Small percentage"** — not unique on Earth; think top few percent. **"Very top"** — compared against real peers, which is why defining your field precisely (Chapter 7) matters so much. **"Field of endeavor"** — yours to articulate, and the officer's to test. Competence, seniority, and excellent performance reviews live below this line; **external acclaim** — prizes, press, citations, elections, rankings, adoption — lives above it.

Quality beats volume — officially

The Policy Manual carries two warnings that should shape how you build your file. First, a **single piece of evidence** can satisfy a criterion, despite the regulation's plural wording. Second — and this surprises people — **"the submission of voluminous documentation may not contain sufficient persuasive evidence."** Officers are told this verbatim. A curated 300-page petition beats an 800-page document dump every time.

> **The bottom line**
>
> Three prongs. One definition. The entire game is converting your career into documented, external, recent proof that you sit in the small percentage at the very top of a well-defined field.

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CHAPTER
03

Two Pathways, One Test

How your evidence gets in the door — and how it gets judged.

Pathway A or Pathway B

The regulation gives you exactly two ways to open a case. **Pathway A** is the one-time achievement: "a major, internationally recognized award" — the regulation's own example is the Nobel Prize, and practitioners treat Olympic medals, Academy Awards, Pulitzers, and Fields Medals as the same tier. One document, requirement met. **Pathway B** — the road nearly everyone travels — is satisfying at least **three of the ten regulatory criteria** (or evidence properly argued as comparable to them). One critical rule: **there is no comparable-evidence substitute for Pathway A** — the one-time award must be the real thing.

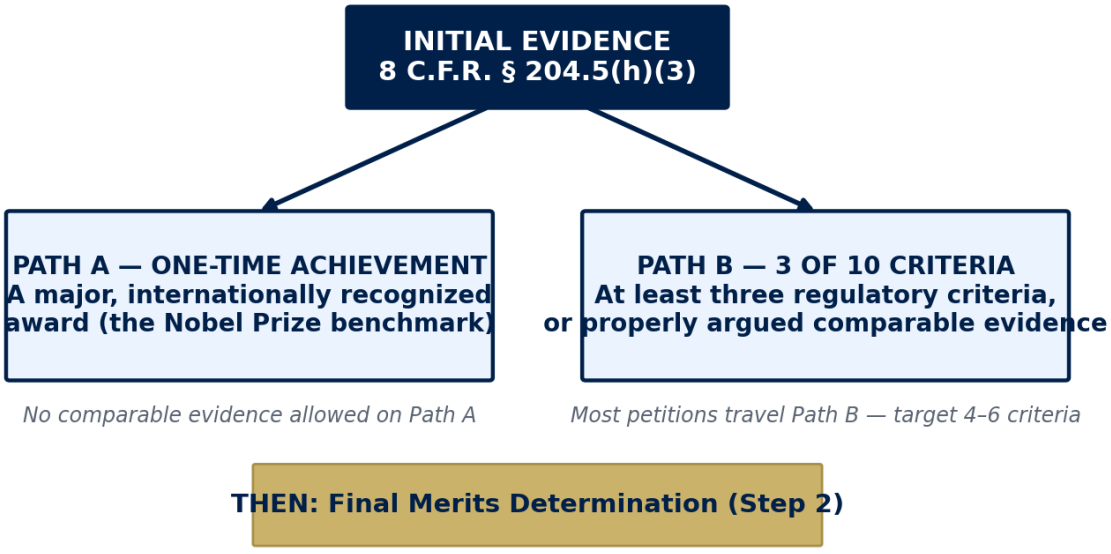


Figure 3.1 — The two evidentiary pathways under 8 C.F.R. § 204.5(h)(3).

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The two-step test (Kazarian)

Since the Ninth Circuit's decision in **Kazarian v. USCIS** (2010), officers evaluate every petition in two distinct steps — and understanding the difference is the highest-leverage insight in this entire guide.

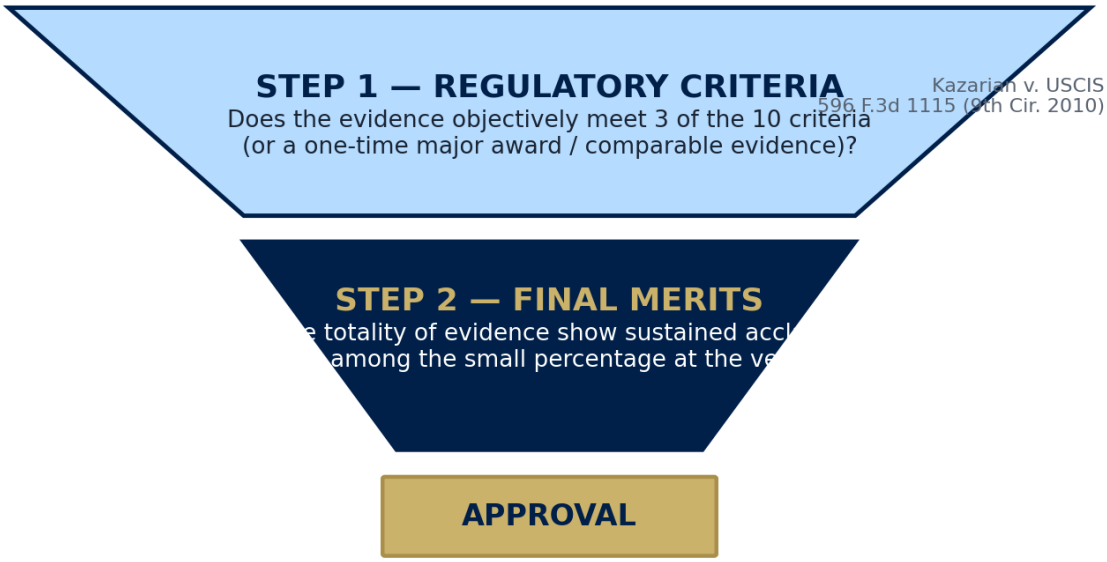


Figure 3.2 — The two-step evidentiary review every officer must apply.

STEP 1 · DO YOU OBJECTIVELY MEET THE CRITERIA?

The officer checks, by a **preponderance of the evidence** (more likely than not), whether your documents meet the plain terms of at least three criteria. Quality is considered only where a criterion has a built-in quality requirement — for example, whether an award truly is "nationally recognized." The officer is expressly told **not** to decide at this step whether you are at the top of your field.

STEP 2 · DOES THE TOTALITY PROVE TOP-OF-FIELD?

This is where petitions live or die. The officer now weighs **everything together** — including evidence that fits no criterion at all — and asks whether the whole record shows sustained national or international acclaim and a place among the small percentage at the very top. The Manual is blunt: meeting three criteria **"alone does not establish"** eligibility.

> **Straight from the source — protections you should know**
>
> • An officer **may not demand a missing type of evidence** ("if this person is extraordinary there should be press about them") and cannot deny a petition merely because one category of proof is absent, if three criteria are otherwise met.

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- Denials must **articulate specific reasons**; requests for evidence should explain the deficiency and, where possible, give examples of persuasive corroboration.
- A prior O-1 approval is **"a relevant consideration … not determinative"** — helpful context, not a guarantee, because the immigrant standard is higher.

— USCIS Policy Manual, Vol. 6, Pt. F, Ch. 2 (accessed July 2026)

What this means for your build

- **File on three, argue five to seven.** Three criteria is the legal floor; strong petitions clear the floor and then win Step 2 on depth.
- **Lead with strength.** Present your strongest criterion first — it frames how the officer reads everything after it.
- **Design for Step 2 from day one.** Every exhibit should answer two questions at once: "which criterion?" and "how does this show top-of-field standing?"

The bottom line

Step 1 is a checklist. Step 2 is a verdict. Build your file so the checklist is undeniable and the verdict is easy.

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CHAPTER

04

The Ten Criteria — Part I

Awards · Memberships · Published Material · Judging · Original Contributions

The next two chapters are the engine room of this guide. For each criterion you get the regulation itself, the current USCIS interpretation, what strong versus weak evidence looks like, examples across all five fields, a self-check, and the RFE pattern to defuse in advance. Read with your CV open — and score yourself as you go using the matrix in Chapter 12.

	Business	Arts	Athletics	Education	STEM
1 Awards	situational	CORE	CORE	situational	CORE
2 Memberships	situational	situational	situational	situational	CORE
3 Published About	CORE	CORE	CORE	situational	situational
4 Judging	CORE	CORE	situational	CORE	CORE
5 Original Contrib.	CORE	situational	situational	CORE	CORE
6 Scholarly Articles	situational			CORE	CORE
7 Artistic Exhibits		CORE			
8 Leading/Critical Role	CORE	CORE	CORE	CORE	CORE
9 High Remuneration	CORE	situational	CORE	situational	CORE
10 Commercial (Perf. Arts)		situational			

CORE = build the case here situational = use when facts are strong blank = rare / comparable-evidence territory

Figure 4.1 — Where each field typically builds its case. Your map may differ; the facts decide.

Criterion 1 — Nationally or Internationally Recognized Prizes or Awards

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(i)**

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> *"Documentation of the alien's receipt of lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor."*

Two questions, in order. First: did **you** receive it? The focus is your receipt, not your employer's — and since USCIS's October 2024 update, **team awards explicitly qualify** when you are an actual recipient: named in the announcement, on the podium, or handed the medal or certificate. Second: is the award nationally or internationally recognized **for excellence in the field**? Nobel-level prestige is not required — that is what "lesser" means — but recognition must be proven, not assumed. Awards limited to youth, amateurs, or early-career professionals can still qualify (rookie-of-the-year honors in major leagues are USCIS's own example), while awards confined to one employer, locality, or school usually cannot.

STRONG EVIDENCE LOOKS LIKE

- The certificate or announcement naming you — plus a dossier about the award itself: who grants it, since when, judged by whom.
- Selectivity statistics: "1 of 8 selected from 4,200 nominees" is worth more than any adjective.
- Independent media coverage of the award — proof the recognition exists outside the granting body.
- Evidence the award rewards excellence in your field, not service, tenure, or attendance.

WEAK EVIDENCE & CLASSIC MISTAKES

- Employer-internal honors ("President's Club"), participation certificates, dean's-list entries.
- Pay-to-play plaques and purchasable "Top 40 Under 40" lists — officers know the difference.
- Claiming the company's award as your own without proof of individual receipt.
- Filing the certificate alone, with nothing establishing the award's recognition or selectivity.

ACROSS THE FIVE FIELDS

- **Business —** a national Entrepreneur of the Year tier award; a juried industry-association prize with documented candidate pools.
- **Arts —** jury prizes at major festivals; national book or design awards with published shortlists and jurors.
- **Athletics —** championship medals, league MVP or rookie honors — and team medals with podium or roster proof.
- **Education —** a national teacher-of-the-year or ministry honor with a documented selection process.

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- **Science/STEM —** best-paper awards at selective conferences (file the acceptance rate); national young-scientist or dissertation prizes.

SELF-CHECK BEFORE YOU CLAIM IT

- ☐ I am named as a recipient in the awarding body's own document.
- ☐ The selection criteria and winner-to-candidate ratio are in my file.
- ☐ A third party (press, reference work, federation) confirms the award's national or international standing.
- ☐ The award is for excellence in my claimed field — not general service.

> **RFE radar**
>
> The #1 RFE here attacks the award's recognition, not your receipt of it. Preempt it by filing a one-page "about this award" dossier with every prize: grantor, history, jury, selectivity, coverage.

Criterion 2 — Membership in Associations Requiring Outstanding Achievements

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(ii)**
>
> *"Documentation of the alien's membership in associations in the field … which require outstanding achievements of their members, as judged by recognized national or international experts in their disciplines or fields."*

The association — at the **exact grade of membership you hold** — must admit members for **outstanding achievement, judged by recognized experts**. Multi-tier bodies are the trap and the opportunity: general membership in a global engineering society will not qualify, but its Fellow grade — elected by a council of experts for important contributions — very often does; the Policy Manual uses exactly this example. Since October 2024, **past membership counts** at Step 1 (long-lapsed membership is weighed later, under sustained acclaim). Membership based on fees, degrees, years of experience, or simply working in the field — alone or combined — does not qualify.

STRONG EVIDENCE LOOKS LIKE

- Your certificate or election letter stating the grade — plus the association's published bylaws for that grade.
- Proof the judges are recognized experts: the named fellowship committee, peer-election process.
- Selectivity data: "Fellows comprise under 0.1% of members" or annual election statistics.
- A short reputation packet on the association itself.

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WEAK EVIDENCE & CLASSIC MISTAKES

- Any membership obtainable by paying dues — including "exclusive" executive clubs with revenue thresholds.
- Regular IEEE/ACM/PMI membership; alumni associations; boards joined by donation.
- A certificate filed without bylaws — officers will not take selectivity on faith.
- Confusing "invitation-only" with "achievement-judged-by-experts." They are not the same test.

ACROSS THE FIVE FIELDS

- **Business —** fellow grades of chartered institutes elected by peer committees; achievement-vetted academies. Fee-based councils only with proof of expert judgment.
- **Arts —** national academies of arts and letters; film or recording academies where the branch admits on peer-judged professional achievement.
- **Athletics —** halls of fame elected by expert panels; national-team selection framed with the selection committee's documented standards.
- **Education —** elected fellows of national education academies and learned societies.
- **Science/STEM —** IEEE Senior Member/Fellow, ACM Distinguished Member/Fellow, AAAS Fellow, national academies — with election statistics.

SELF-CHECK BEFORE YOU CLAIM IT

- ☐ My exact membership grade is documented.
- ☐ The written admission criteria for that grade are in my file.
- ☐ Those criteria require outstanding achievement — not fees, degrees, or tenure.
- ☐ The judges of admission are identifiable, recognized experts.

> **RFE radar**
>
> RFEs here almost always demand the bylaws or the proof of expert judging. Never file this criterion on a certificate alone; if criteria are unpublished, obtain an officer's letter from the association describing the process.

Criterion 3 — Published Material About You

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(iii)**
>
> *"Published material about the alien in professional or major trade publications or other major media, relating to the alien's work in the field … Such evidence shall include the title, date, and author of the*

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> *material, and any necessary translation."*

Two tests. First, the material must be **about you, relating to your work** — but you need not be the sole subject: an article on a broader topic qualifies if it contains a **substantial discussion of your work** and names you in connection with it, and coverage of your team's work counts when you are mentioned or your significant role is documented. Second, the outlet must be a professional publication, major trade publication, or other major media — judged by intended audience and by relative circulation, readership, or viewership. Transcripts of major podcast, TV, or radio coverage qualify. One absolute exclusion: **paid placements** — including advertorials that look editorial — are not published material about you, and discovering one in a file damages everything around it.

STRONG EVIDENCE LOOKS LIKE

- Full articles with title, date, author — never clippings — plus certified translations.
- An outlet-qualification sheet per source: audience, circulation or ranking data, editorial independence.
- A mix of national and trade coverage across time — which quietly proves "sustained" too.
- Broadcast and podcast features filed as transcripts with audience metrics.

WEAK EVIDENCE & CLASSIC MISTAKES

- Press releases and wire reposts; your employer's blog; your own LinkedIn posts.
- A one-line quote in an article that never discusses your work.
- Coverage that is really about the company, with your name absent from the work described.
- Undisclosed paid features — an integrity problem, not just a weak exhibit.

ACROSS THE FIVE FIELDS

- **Business —** a Forbes/FT/Bloomberg or top trade profile of your methodology; a ranked-podcast interview filed with transcript and charts data.
- **Arts —** reviews of your exhibition, film, or album in major arts press; artist profiles; documentary segments on your work.
- **Athletics —** national-daily profiles and features centering your performance; broadcast segments with viewership.
- **Education —** national or education-trade coverage naming you as the architect of a method or reform.
- **Science/STEM —** science journalism covering your research; trade coverage of your patented technology naming you.

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SELF-CHECK BEFORE YOU CLAIM IT

- ☐ Each item shows title, date, author, full text — and a translation where needed.
- ☐ Each item substantially discusses my work, not just my employer.
- ☐ I can document why each outlet is "major" or "professional/trade."
- ☐ Nothing in my media file was paid for.

> **RFE radar**
>
> Twin RFEs: "not about the beneficiary" and "outlet not shown to be major." Kill both with a one-page cover sheet per article: what it says about you + the outlet's credentials.

Criterion 4 — Judging the Work of Others

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(iv)**
>
> *"Evidence of the alien's participation, either individually or on a panel, as a judge of the work of others in the same or an allied field of specialization …"*

The most buildable criterion in the book. Any formal evaluation of others' professional work can qualify — peer review, competition juries, grant panels, thesis committees, editorial boards — provided two things are true: it is in your **same or an allied field**, and you can prove you **actually completed the judging**, not merely received an invitation. USCIS's own example: a journal's review request **plus** confirmation the review was done. One nuance straight from the Manual: judging of any caliber satisfies Step 1 — but at Step 2 the officer weighs whether your judging reflects top-of-field standing. Judge things that matter, and prove that they matter.

STRONG EVIDENCE LOOKS LIKE

- Invitation + completion proof for every instance: editor thank-yous, reviewer dashboards, jury listings, certificates.
- A prestige packet per venue: acceptance rates, competition scale, who else judges.
- A cumulative table — venue, year, volume — showing a pattern, not a one-off.

WEAK EVIDENCE & CLASSIC MISTAKES

- Invitations with no evidence the work was performed.
- Routine supervision of your own subordinates dressed up as "judging."
- A single local judging gig carrying the whole criterion — passes Step 1, sinks at Step 2.

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ACROSS THE FIVE FIELDS

- **Business —** juror at national startup or business-plan competitions; industry award selection panels; reviewer for management journals.
- **Arts —** festival juries; arts-council grant panels; conservatory admissions juries; competition adjudication.
- **Athletics —** certified judge or referee at sanctioned national/international events; national-team selection committees.
- **Education —** accreditation panels; national curriculum or textbook boards; external thesis examiner; grant review.
- **Science/STEM —** peer review for indexed journals (keep counts per journal); program committees of selective conferences; agency grant panels.

SELF-CHECK BEFORE YOU CLAIM IT

- ☐ For every instance I hold both the invitation and the completion proof.
- ☐ Every venue's significance is documented, not asserted.
- ☐ The work I judged sits in my claimed field or an allied one.
- ☐ My judging spans more than one year or venue.

> **RFE radar**
>
> Lowest Step-1 RFE rate of all ten when completion is proven — and the most commonly discounted at Step 2. Accumulate prestige, present a table, and let the pattern speak.

Criterion 5 — Original Contributions of Major Significance

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(v)**
>
> *"Evidence of the alien's original scientific, scholarly, artistic, athletic, or business-related contributions of major significance in the field."*

The heavyweight criterion — and the most-RFE'd. Two elements: your contribution must be **original**, and it must be of **major significance to the field** — the field, not one employer or client. The Manual warns that funding, patents, or publication may prove originality but **"will not necessarily establish, on its own"** major significance. What does? Widespread commentary from others on the work's importance; citation levels high relative to your field; a patented technology with significant attention or commercialization; adoption you can count. Expert letters help **when the record corroborates them** — a

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letter without documents behind it is opinion, and the Manual says letters should not be the cornerstone of any claim.

STRONG EVIDENCE LOOKS LIKE

- The artifact itself — patent, paper, framework, product, technique — with a before/after originality story.
- An adoption trail: who uses it, at what scale, with what measured outcome.
- Independent significance signals: citations vs. field baselines, standards adoption, licensing, replication, press.
- Every claim run through the formula below — **a number in every sentence.**

WEAK EVIDENCE & CLASSIC MISTAKES

- The single biggest failure pattern in all of EB-1A: “significantly improved…” with no number.
- Impact confined to one employer, however large.
- Patents with no commercialization, citation, or corroborating letters.
- Letters full of praise, empty of documents.

ACROSS THE FIVE FIELDS

- **Business —** a methodology adopted by multiple companies or an industry body; a market-creating product with documented category impact.
- **Arts —** a technique other artists demonstrably adopted — critics’ essays, curricula, documented influence.
- **Athletics —** a training method adopted by national programs; a technique or record that reset the discipline’s benchmarks, per federations and press.
- **Education —** a curriculum or instrument adopted across districts or systems, with adoption letters and outcome data.
- **Science/STEM —** highly cited work relative to subfield norms; tools and datasets the community actually uses; contributions embedded in standards or cleared products.

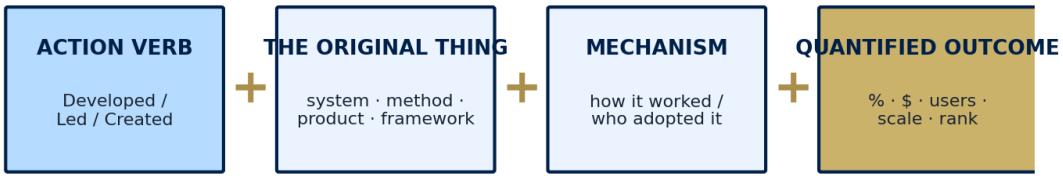
SELF-CHECK BEFORE YOU CLAIM IT

- ☐ I can state what existed before my contribution and what changed because of it.
- ☐ The impact extends beyond my own employer.
- ☐ Every impact claim carries a number — adoption count, %, $, users, percentile.
- ☐ Each expert letter is matched by documents that corroborate it.

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RFE radar

Adjudicators routinely concede “original” and deny “major significance.” Preempt with a one-page Significance Map per contribution: artifact → adopters → metrics → independent commentary.



“Developed a trial-recruitment algorithm → adopted across 4 Phase III trials → cut enrollment time 23%, saving ≈ $4.2M.”

Figure 4.2 — The AiVass quantification formula. If a sentence has no number, it is not evidence yet.

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CHAPTER

05

The Ten Criteria — Part II

Scholarly Articles · Exhibitions · Leading/Critical Role · High Remuneration · Commercial Success — plus the comparable-evidence key.

Criterion 6 — Authorship of Scholarly Articles

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(vi)**
>
> *"Evidence of the alien's authorship of scholarly articles in the field, in professional or major trade publications or other major media."*

Two tests again. First: did you author **scholarly** articles? USCIS defines the genre: reporting original research, experimentation, or philosophical discourse; written by a researcher or expert; generally **peer reviewed**; typically carrying footnotes, endnotes, or a bibliography. Peer-reviewed, **published conference proceedings count** — a lifeline for computing and engineering, where top venues are conferences. For non-academic fields, the article must be "written for learned persons" in the field. Second: the venue must be a professional publication, major trade publication, or major media, judged by audience and relative circulation. As with judging: authorship of any caliber satisfies Step 1 — venue rank, citations, and author position are weighed at Step 2.

STRONG EVIDENCE LOOKS LIKE

- Full texts plus indexing proof (Scopus, Web of Science, PubMed) for each venue.
- A venue-quality packet: impact factor or conference acceptance rate, audience.
- Author-position context — sole, first, or senior authorship stated plainly.
- A citation report per article, with a field-baseline comparison.

WEAK EVIDENCE & CLASSIC MISTAKES

- Self-published posts, whitepapers, and "thought leadership" with no editorial review.
- Predatory journals — one bad venue can taint the whole exhibit; screen before filing.

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- Counting a preprint and its published version as two items.
- Publications filed with zero venue-quality documentation.

ACROSS THE FIVE FIELDS

- **Business —** peer-reviewed management journals; books with recognized publishers filed with the publisher's editorial-process proof; editor-reviewed major outlets framed by audience.
- **Arts —** scholarship in recognized arts journals or published monographs — for working artists this criterion often does not readily apply, which is exactly what comparable evidence is for.
- **Athletics —** sports-science publications or federation technical manuals written for learned practitioners — otherwise a comparable-evidence field.
- **Education —** peer-reviewed education research; textbooks with established academic publishers, edition history included.
- **Science/STEM —** journal articles and selective-conference proceedings — always file the acceptance rate.

SELF-CHECK BEFORE YOU CLAIM IT

- ☐ Every venue's peer-review or editorial process is documented.
- ☐ Impact factor / acceptance rate / indexing is in the file.
- ☐ My authorship role is stated for each item.
- ☐ I ran a predatory-publisher screen.

> **RFE radar**
>
> Step-1 RFEs are rare here; the fight is Step 2. Two papers in obscure venues will not carry final merits — pair authorship with citations (Criterion 5 synergy) or position it as support, not anchor.

Criterion 7 — Display of Work at Artistic Exhibitions or Showcases

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(vii)**
>
> *"Evidence of the display of the alien's work in the field at artistic exhibitions or showcases."*

Two tests. First: the displayed work must be **your own work product**. Second — and this is where the October 2024 update drew a hard line — the venue, physical or virtual, must be **artistic** in nature. USCIS acknowledged the dictionary meaning of "exhibition" includes non-artistic showings, then held that the regulation's word "artistic" controls: **trade shows, tech demos, and science expos do not qualify here**

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— they can only enter through a properly supported comparable-evidence claim. A quirk worth knowing: display at an artistic exhibition of any caliber satisfies Step 1; the venue's prestige is weighed at Step 2.

STRONG EVIDENCE LOOKS LIKE

- Exhibition catalogs and programs naming you, plus installation or screening documentation.
- A venue dossier: the gallery, museum, or festival's standing, curatorial selectivity, attendance, press.
- Proof of juried or curated selection.
- A span of exhibitions across years and geographies.

WEAK EVIDENCE & CLASSIC MISTAKES

- A business person's trade-show booth pled under this criterion — an automatic loser post-2024 unless reframed as comparable evidence.
- Café or co-working "exhibits"; self-organized shows; pay-to-show galleries.
- Group shows with no documentation that your work was included.
- An online portfolio labeled a "virtual exhibition" with no curated showcase behind it.

ACROSS THE FIVE FIELDS

- **Business —** rarely applicable as written — route product showcases through comparable evidence with an explicit "does not readily apply" argument.
- **Arts —** solo and group shows at recognized galleries and museums; juried biennials; festival official selections; runway shows; curated design showcases; commissioned public art.
- **Athletics —** not applicable as written; elite invitation-only showcases only via comparable evidence, if at all.
- **Education —** rarely applicable — unless the educator's own creative work is genuinely artistic and exhibited.
- **Science/STEM —** not artistic as written; note the Manual maps a major trade-show presentation to the scholarly-articles criterion via comparable evidence — brief carefully about which criterion your substitute serves.

SELF-CHECK BEFORE YOU CLAIM IT

- ☐ The venue is artistic in nature under the post-2024 rule.
- ☐ My authorship of the displayed work is proven.
- ☐ A catalog, program, or press item names me.

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☐ Borderline non-artistic showings are re-pled as comparable evidence in the initial filing.

RFE radar

The predictable denial since October 2024 is "venue not artistic." Screen every item now — do not wait for the RFE to reframe.

Criterion 8 — Leading or Critical Role for Distinguished Organizations

In the regulation — 8 C.F.R. § 204.5(h)(3)(viii)

"Evidence that the alien has performed in a leading or critical role for organizations or establishments that have a distinguished reputation."

The anchor criterion for most business, and many arts, athletics, and industry-STEM cases — and a genuine two-part test. Part one: a **leading OR critical** role for an organization **or a division or department of one** — that division pathway rescues strong people inside big companies. "Leading" is about evidenced leadership: a title with matching duties helps. "Critical" is about performance: contribution of **significant importance to the outcome** — a supporting role can be critical, because it is the performance, not the title, that decides. Part two: the organization (or your division) must have a **distinguished reputation** — "marked by eminence, distinction, or excellence." Size and longevity are relevant but not decisive; customer-base scale and media coverage count; for academia, national rankings and government research grants are named positive factors; and for **startups, significant funding from government, VC, or angel investors** — commensurate with stage and industry — is a positive reputation factor by name. One regulatory requirement people miss: evidence of experience must consist of **letters from employers**.

STRONG EVIDENCE LOOKS LIKE

- An org chart placing you, plus employer letters quantifying scope: team size, budget, P&L, strategic authority.
- A but-for story: the outcome the organization would not have achieved without you specifically — with numbers.
- A third-party reputation dossier for the organization or your division: rankings, funding, revenue or user scale, press.
- Both prongs claimed where the facts support them — leading AND critical is the strongest posture.

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WEAK EVIDENCE & CLASSIC MISTAKES

- A title with no scope data — "Director" proves nothing by itself.
- Borrowing a famous parent company's glow without using the division pathway properly.
- Self-drafted letters your managers merely signed — template language is detectable.
- "Critical" asserted with no outcome attached.

ACROSS THE FIVE FIELDS

- **Business —** C-suite or VP at a ranked or well-funded company; the founder of a VC-backed startup (funding = reputation factor, per the Manual); the architect of a flagship outcome below C-level via the critical prong.
- **Arts —** principal dancer, first chair, or lead at a renowned company; creative director of an acclaimed studio or label; curator of a major program.
- **Athletics —** captain or starter on nationally ranked teams; head coach or performance director of national programs; critical specialist roles with documented outcomes.
- **Education —** dean, chair, or founding director at ranked institutions — file the rankings and grant data the Manual itself points to.
- **Science/STEM —** PI or lab director; tech lead of a flagship product at a distinguished company; an early senior engineer at a heavily funded startup.

SELF-CHECK BEFORE YOU CLAIM IT

- ☐ A third-party reputation dossier exists for the organization — or the specific division.
- ☐ My authority is quantified: reports, budget, ownership of strategy.
- ☐ My but-for outcome is explicit and measured.
- ☐ Employer letters are on letterhead, signed, specific, and not templated.

> **RFE radar**
>
> Twin RFEs: "organization not shown distinguished" and "role not shown leading or critical." Over-invest here — for most professionals this is the criterion that sets the tone for the entire petition.

Criterion 9 — High Salary or Other Significantly High Remuneration

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(ix)**

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> *"Evidence that the alien has commanded a high salary or other significantly high remuneration for services, in relation to others in the field."*

A math criterion — and the math must be honest. Your compensation must be high **relative to others in the field**, proven with position- and geography-appropriate survey data. Two generous clarifications live in the current Manual. First, **"has commanded" does not require money already earned** — a credible signed contract or job offer showing prospective compensation can qualify. Second, for **entrepreneurs**, significant funding is weighed when evaluating the credibility of prospective-pay evidence — and highly valued **startup equity can be argued as comparable evidence** to this criterion. The cardinal rule: benchmark like-for-like — same occupation, same market, right percentile. Mismatched geography (comparing against the wrong country's wages, in either direction) is the classic self-inflicted wound.

STRONG EVIDENCE LOOKS LIKE

- W-2s, tax returns, or a credible signed offer/contract — plus equity grants with valuation support.
- A percentile placement against the right comparator: government wage data for your occupation plus reputable industry surveys — aim to document top ~10%.
- The survey methodology itself filed as an exhibit, not a screenshot of a number.
- For founders: funding evidence framing the credibility of your compensation — or the equity-as-comparable-evidence play.

WEAK EVIDENCE & CLASSIC MISTAKES

- Benchmarking against the wrong market — the single most common error under this criterion.
- National averages instead of percentile placement.
- Unvested or illiquid equity claimed as cash with no valuation.
- A cherry-picked niche survey with no methodology.

ACROSS THE FIVE FIELDS

- **Business —** top-decile executive compensation versus role/industry/region surveys; documented profit share versus field norms.
- **Arts —** per-project fees, advances, and royalties placed against published industry distributions.
- **Athletics —** contract value versus league distributions; federation prize-money lists — clean, third-party percentile evidence.
- **Education —** salary versus discipline- and rank-specific faculty surveys; endowed-chair stipends.
- **Science/STEM —** total compensation versus levels-based industry data plus government percentiles for the occupation code.

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SELF-CHECK BEFORE YOU CLAIM IT

- ☐ My compensation is fully documented — or my offer/contract is credible and signed.
- ☐ My comparator matches occupation, geography, and seniority.
- ☐ My percentile placement is computed and shown, with methodology.
- ☐ Equity and bonus are valued with supporting documents.

> **RFE radar**
>
> RFEs target the comparator, not the paycheck. If your pay is high locally but ordinary nationally, decide up front whether this criterion helps or dilutes — filing a weak ninth criterion can cost more than it adds.

Criterion 10 — Commercial Success in the Performing Arts

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(x)**
>
> *"Evidence of commercial successes in the performing arts, as shown by box office receipts or record, cassette, compact disk, or video sales."*

The narrowest criterion — performing arts only, and strictly **quantitative**. The Manual is explicit: merely having recorded albums or performed in productions is "insufficient, in and of itself." The evidence must show **volume** — sales and receipts reflecting commercial success **relative to others in similar pursuits**. Certified numbers with comparative context win; raw counts without context lose.

STRONG EVIDENCE LOOKS LIKE

- Certified box-office data from industry trackers; audited sales and royalty statements.
- Chart positions filed with the chart's methodology; certifications (gold/platinum) — third-party and threshold-based.
- Headline-tour grosses from recognized industry reports.
- Your causal connection to the success: billing, headliner status, writing credits.

WEAK EVIDENCE & CLASSIC MISTAKES

- Raw streaming counts with no revenue or rank context.
- Self-reported sales; social-media follower counts framed as commercial success.
- Claiming an ensemble production's gross without tying your role to the draw.

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ACROSS THE FIVE FIELDS

- **Performing arts —** nationally ranked box office; certified album sales; trade-ranked tour grosses; streaming revenue with genre-percentile context.
- **All other fields —** not applicable as written. Bestseller sales, audited event grosses, or verified clinic ticketing can be explored only as comparable evidence with a supported "does not readily apply" statement.

SELF-CHECK BEFORE YOU CLAIM IT

- ☐ My numbers come from third-party or audited sources.
- ☐ A comparative baseline against similar performers is included.
- ☐ My personal draw is documented, not implied.

> **RFE radar**
>
> Rarely filed and usually mis-filed. Use only with hard numbers and rank context; otherwise anchor arts cases on Criteria 1, 3, 5, 7, and 8.

The Comparable-Evidence Key — § 204.5(h)(4)

> **In the regulation**
>
> *"If the above standards do not readily apply to the beneficiary's occupation, the petitioner may submit comparable evidence to establish the beneficiary's eligibility."*

This provision is the great equalizer for founders, industry engineers, athletes, and working artists — occupations the ten criteria were not drafted around. The current Manual makes it more usable than ever: **"readily" means "easily"** — a criterion need not be entirely inapplicable, only not easily applicable to your occupation. A **detailed, specific, and credible statement** from you can establish that; a generic assertion cannot, and "just accept my witness letters as comparable evidence" fails by name. The Manual then supplies its own examples: a **major trade-show presentation** as comparable to scholarly articles for an industry professional, and **highly valued startup equity** as comparable to high salary for an entrepreneur.

THE FOUR-MOVE DRAFTING PATTERN

1. Name the criterion you are substituting for.
2. Prove why your occupation cannot easily produce that evidence — occupational norms, with sources.
3. Present the substitute evidence.

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4. Argue equivalence of significance — not merely similarity of form.

RFE radar

Officers reject comparable evidence when the listed criterion plainly applied to your occupation — an academic claiming articles "don't apply" will lose. Reserve this tool for genuine occupational mismatch, and remember: there is no comparable evidence for the one-time-achievement pathway.

The bottom line

Ten doors, one master key. Most strong cases open four to six doors directly and use the key for one more — deliberately, with the four-move pattern, in the initial filing.

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CHAPTER

06

Final Merits — Winning Step Two

Where three checkmarks become one verdict.

Imagine the officer has just agreed you meet four criteria. Nothing is decided. Step 2 asks a different question entirely: taken **all together** — including material that fits no criterion — does this record show sustained national or international acclaim and a place among **the small percentage at the very top of the field**? Most denials in this category are Step-2 denials. This chapter is how you win it.

The factors USCIS itself lists

The Policy Manual gives officers a non-exhaustive list of evidence that helps establish top-of-field standing at Step 2. It was written with STEM in mind and expressly applies to **all fields** — and it reads like an outline for your final-merits section:

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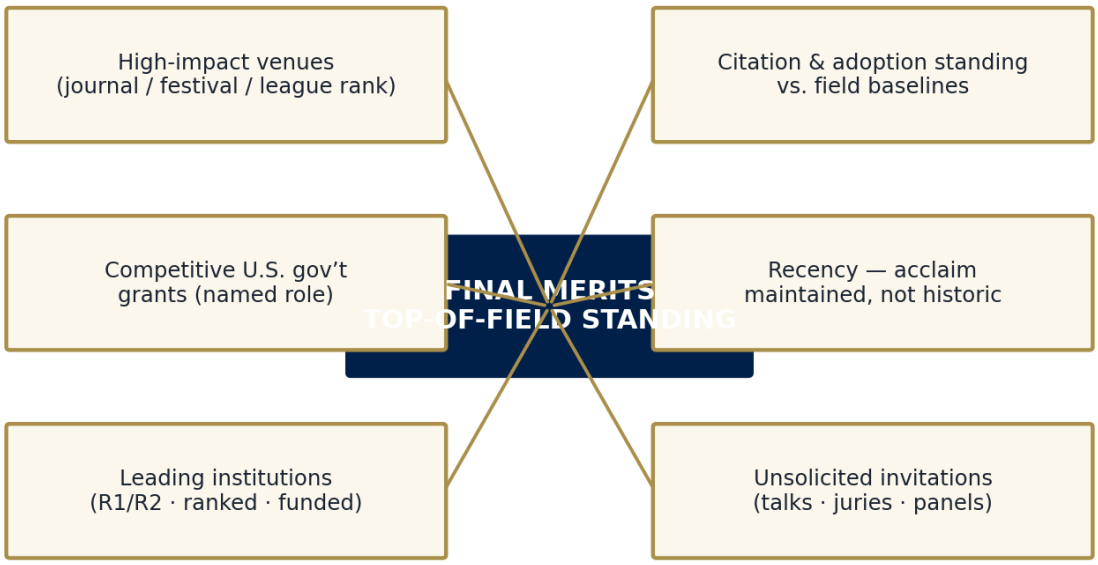


Figure 6.1 — Positive final-merits factors named in the current Policy Manual, plus the recency thread that ties them together.

- **High-impact venues.** Publication in journals ranked high for your field (impact factor filed as evidence) — the same logic extends by analogy to festival tier, league level, and outlet rank.
- **Citation standing.** Total citations high relative to others in the field — an h-index can serve if you explain the methodology and source, as the Manual itself requires. Early-career filers: the Manual explicitly notes this factor matters less for you.
- **Leading institutions.** Employment or research history at institutions with high research activity (Carnegie R1/R2) or comparable international standing (e.g., recognized global rankings).
- **Unsolicited invitations.** Invited talks at recognized conferences — keep the invitation email; "unsolicited" is the operative word.
- **Named on competitive U.S. government grants.** Investigator, scientist, or researcher on a peer-reviewed, competitively funded grant.

Straight from the source — the context rule

"In all cases, the petitioner must provide sufficient context regarding the above evidence … the petitioner must explain the significance of the submitted evidence, and how it demonstrates that the person has achieved sustained national or international acclaim."

— USCIS Policy Manual, Vol. 6, Pt. F, Ch. 2 (accessed July 2026)

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Letters of support — the official warning

The Manual devotes a section to this, and it is worth internalizing: letters, "while not without weight, **should not form the cornerstone** of a successful claim." Witness statements must be **corroborated by documentary evidence**; letters that recite USCIS definitions or make expansive general statements "are generally not persuasive"; and acclaim is expected to extend **beyond your personal and professional acquaintances**. The playbook that follows from this:

- Six to eight letters, weighted toward independent experts with no employment relationship to you.
- Every letter assigned two to four specific criteria to address — with the documents that back each claim already in the file.
- A comparative sentence in each: where you sit against the field's top tier, in the writer's professional judgment.
- Brief your writers with facts and bullet points — never draft the letter for them. Template language across letters is detectable and discounted.

Writing the final-merits section

1. Restate the standard — the two-step framework and the "small percentage at the very top" definition.
2. Define the peer group — who, concretely, are the top few percent of your field? Name the titles and institutions.
3. Synthesize, don't repeat — weave the criteria into one narrative arc: recognition → influence → standing.
4. Place yourself with comparatives — percentiles, rankings, rarity of role, scale of adoption.
5. Prove the acclaim is national or international — not organizational or local.
6. Show the trajectory is alive — your last 24 months of recognition, named.
7. Land the U.S. benefit — what your continued work here produces, in concrete terms.

The bottom line

Step 2 is not a second checklist — it is the story your checklist was building toward. Write it as an argument with numbers, not a summary with adjectives.

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CHAPTER

07

Evidence Strategy

Define the field, quantify the record, respect the clock.

Move 1 · Define your field of endeavor — deliberately

Your "field" is the denominator of the entire case: top of **what**, exactly? Define it too broadly ("business") and the top few percent becomes an impossible crowd. Define it too narrowly ("B2B logistics pricing for Nordic cold-chain startups") and an officer may find the peer group — and your acclaim — artificial. The working formula:

> **The AiVass field formula**
>
> **[Methodology or domain] + [application area] + [scale or context]**
>
> *"Machine-learning research applied to genomics" · "Strategic human-capital leadership in international business development" · "High-performance coaching in Olympic sprint disciplines"*

- Specific enough that top-few-percent positioning is credible; broad enough to hold your whole career arc.
- Stable across the petition — every criterion section repeats the same field phrase, verbatim.
- Stress-tested: if an officer narrowed or broadened it one notch, would your evidence still fit? Keep one fallback definition documented.

Move 2 · Quantify everything

Return to Figure 4.2. The difference between a résumé line and an exhibit is a **number with a source**. Run every achievement through the formula — action, original thing, mechanism, quantified outcome — and then ask the only question officers ask: **says who?** Every number needs a document: a dashboard export, a letter, a public report, a certified statement.

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Move 3 · Respect the evidence hierarchy

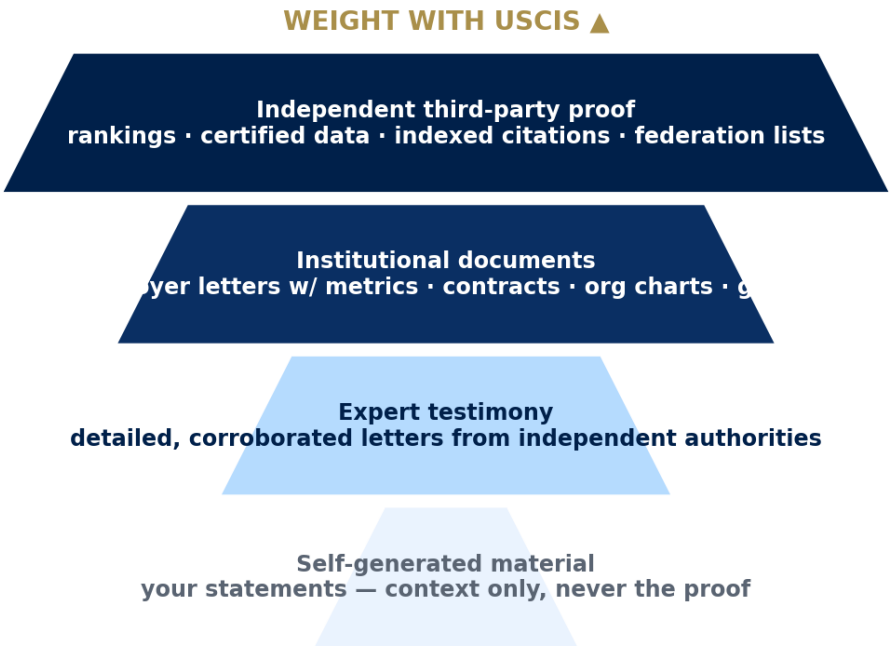


Figure 7.1 — Weight rises with independence. Build downward from the top.

Self-description is context; institutions are proof; independent third parties are power. When choosing between two exhibits that say the same thing, always file the one further from your own hand.

Move 4 · Protect recency

“Sustained” is the quiet killer. A brilliant 2019 with a silent 2023–2026 forces the officer to ask whether the acclaim was maintained — and the Manual instructs exactly that inquiry. Audit your last 24 months now: recognitions, coverage, judging, talks, adoption milestones. If the recent column is thin, that is not a reason to panic — it is your build list.

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Move 5 · Build on a 30 / 90 / 180 clock



Figure 7.2 — The evidence-building sprint plan.

- **Days 0–30 — inventory and map.** Convert your CV into a criteria-tagged evidence list. Collect everything you already control: tax documents, award certificates, membership records, org charts, publications.
- **Days 31–90 — build and request.** Volunteer for peer review and juries (then keep completion proof). Pitch trade press. Pursue the fellow-grade membership. Commission the salary benchmark. Start employer letters — with your metrics attached so they cannot come back generic.
- **Days 91–180 — prove and assemble.** Brief 6–8 letter writers against specific criteria. Build the exhibit dossiers (award packets, outlet sheets, venue packets, significance maps). Then the professional review — and filing.

Strategy note — the patience rule

The most expensive mistake in EB-1A is filing three months early. If you are at two solid criteria and three maybes, a 90-day build converts maybes into exhibits. Denials cost more than patience — in money, in time, and in the record.

The bottom line

Field defined. Claims quantified. Evidence independent. Record recent. That is the entire strategy — everything else is assembly.

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CHAPTER

08

Petition Structure — Assembling the Book

Every petition tells a story. Yours should read like it was inevitable.

A winning EB-1A petition is not a pile of documents — it is a **book**: a cover letter that frames the standard, criterion chapters ordered by strength, a final-merits argument that synthesizes them, and an exhibit index that lets an officer verify any claim in seconds. Here is the architecture.

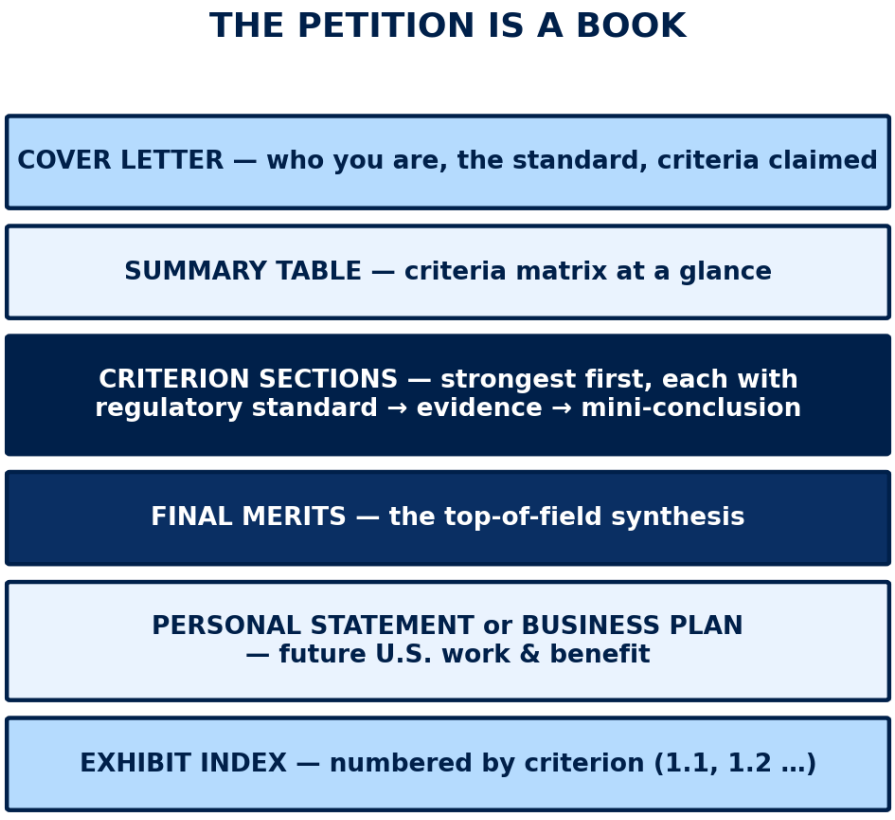


Figure 8.1 — The anatomy of the petition package.

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The cover letter

- Who you are, your field of endeavor (the exact phrase), and the classification sought — INA § 203(b)(1)(A).
- The legal frame in one paragraph: the two-step analysis and the criteria you will establish ("at least five of the regulatory criteria").
- A forward-looking line: your intended U.S. work and its benefit.

Criterion sections — the repeating pattern

Each claimed criterion gets its own chapter, built the same way every time:

1. Regulatory standard — quote the criterion, state its elements, and say in one sentence how you meet them.
2. The evidence, item by item — for organizations: reputation first, then your role; for awards: the award dossier first, then your receipt.
3. Quantified impact — the formula from Chapter 4, applied relentlessly.
4. Exhibit references — "Exhibit 3.2" precision, so nothing must be hunted.
5. A two-sentence mini-conclusion in the criterion's own language ("leading," "critical," "distinguished," "major significance").

> **Strategy note — ordering**
>
> Present criteria in order of evidentiary strength for you — not in regulatory order. The first criterion an officer reads calibrates how they read the rest. Strongest first; weakest last, when the case is already made.

The final-merits section

Chapter 6 is your template: standard → peer group → synthesis → comparatives → national scope → living trajectory → U.S. benefit. Then attach the human document:

- **Specialists: a personal statement** (3–5 pages, first person) — your future U.S. work, why it continues your area of extraordinary ability, and what it produces for the country. No employer required; specificity required.
- **Founders: a business plan** (8–15 pages) — market, model, realistic 3-year projections, U.S. hiring, and the argument that your extraordinary ability is the engine of the venture.

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The exhibit index

Number exhibits **by criterion** (1.1, 1.2 … 2.1, 2.2 …), give each a title and a one-line “what it proves,” and hold every item to the same standards: employer and expert letters on letterhead and signed; certified English translations for anything foreign; full articles rather than fragments; web evidence captured with URL and date visible; full report sections rather than cropped quotes.

The bottom line

Structure is persuasion. An officer who can verify any claim in under a minute is an officer reading your story instead of fighting your filing.

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CHAPTER

09

The AI-Powered Workflow

Use machines for the mapping. Keep humans on the truth.

AiVass builds AI-powered business systems, so let us be precise about what AI is genuinely good at in an EB-1A build — and where it must never be trusted. Used well, AI collapses **weeks of organization into days**. Used carelessly, it manufactures the exact defects officers are trained to catch: template language, unverifiable claims, and confident errors. The workflow below keeps you on the right side of that line.

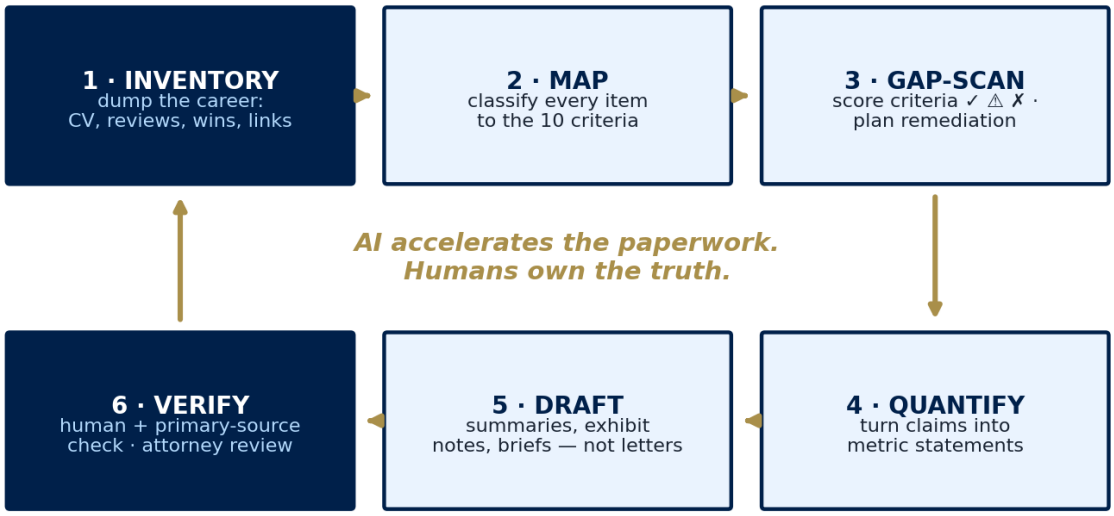


Figure 9.1 — The AiVass six-step AI-assisted evidence workflow.

The six steps

1. **Inventory.** Feed the machine everything about your career in one place: CV, LinkedIn export, performance reviews, project summaries, award lists, publication links, press links. Garbage-in rules apply — completeness now saves rework later.

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2. **Map.** Have the AI classify every item against the ten criteria (Chapters 4–5 are your rubric) and flag which element of each criterion the item serves.
3. **Gap-scan.** Score each criterion ✓ fully met / ⚠️ partially met / ✗ not met, and generate the 30/90/180 build list from Chapter 7.
4. **Quantify.** Run every achievement through the formula — action + original thing + mechanism + number — and, for every number, record the document that will prove it.
5. **Draft support material.** Exhibit descriptions, award and venue dossiers, chronology tables, letter-writer briefing memos, your personal-statement outline. Drafts, always drafts.
6. **Verify and humanize.** Check every legal statement against uscis.gov, every factual claim against its source document, and rewrite in your own voice. Then: professional review.

Prompt starters

> **Copy, adapt, use**
>
> *"Here is my CV. Classify every achievement against the 10 EB-1A criteria at 8 C.F.R. § 204.5(h)(3). For each item, name the criterion, the element it satisfies, and the document I would need to prove it."*
>
> *"Rewrite these five accomplishments using: action verb + the original thing + mechanism + quantified outcome. Flag any sentence that still lacks a number."*
>
> *"Act as a skeptical USCIS officer at the final-merits step. List the ten hardest questions you would ask about this record, and what evidence would answer each."*
>
> *"Draft a one-page briefing memo for a recommendation-letter writer: my role, the two criteria this letter should address, the metrics to reference, and the basis of their knowledge. Do not draft the letter itself."*
>
> *One hundred more, organized by criterion and case stage, live in the companion product "100 AI Prompts for EB-1A."*

The hard rules

- **Never fabricate.** No invented metrics, citations, awards, or quotes — ever. A single fabricated exhibit can destroy a genuine case and worse.
- **Never let AI write recommendation letters.** Officers discount template language, and identical phrasing across letters is detectable. Brief your writers; let them write.
- **Verify every legal statement against the primary source.** AI tools — all of them — can misstate law with total confidence. uscis.gov is the referee.

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- **Protect your data.** Strip passport numbers, alien numbers, and other identifiers before pasting anything into any tool, and use business-grade tools with data controls.
- **AI assists; it does not advise.** Nothing a model outputs is legal advice. Your attorney reviews the final case.

The bottom line

AI is your paralegal for structure and speed — inventory, mapping, gap analysis, drafting scaffolds. The evidence, the voice, and the judgment stay human.

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CHAPTER

10

Common Mistakes & Persistent Myths

The failures are predictable. That is good news.

Denials in this category cluster into a small number of recurring patterns. Learn them once, and you can audit your own file the way an officer will.

The ten mistakes that sink otherwise strong cases

1. **Unquantified contributions.** "Significantly improved efficiency" is not evidence. A number with a source is. This single habit accounts for more Criterion 5 denials than any other.
2. **Impact confined to one employer.** Major significance means the field, not the firm — however famous the firm.
3. **Letters as the cornerstone.** The Policy Manual says letters "should not form the cornerstone" and must be corroborated. Build the documents first; letters interpret them.
4. **Volume over persuasion.** Officers are told that voluminous documentation may not be persuasive. Curate ruthlessly.
5. **Stale acclaim.** A silent 24 months undermines "sustained." Recency is not optional.
6. **Award certificates with no award dossier.** Nobody is required to know your prize. Prove its recognition.
7. **Membership certificates with no bylaws.** Selectivity must be shown, not asserted.
8. **Title without scope.** "Director" proves nothing. Reports, budget, authority, and a but-for outcome do.
9. **Mismatched salary benchmarks.** Wrong geography, wrong occupation, wrong percentile — self-inflicted, entirely avoidable.
10. **Filing three months early.** The most expensive mistake in EB-1A. A 90-day build converts maybes into exhibits.

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Eight myths, corrected

The myth	The reality
“You need a Nobel Prize.”	The regulation says “lesser nationally or internationally recognized” awards — and awards are only 1 of 10 criteria. Most approved cases have no marquee prize at all.
“You need a U.S. employer or job offer.”	No job offer is required, and you may self-petition. You must intend to continue in your field.
“It’s only for scientists.”	The statute names five fields: sciences, arts, education, business, athletics.
“Team awards don’t count.”	Since October 2024, USCIS states team awards can qualify where you are an actual recipient — named, on the podium, handed the medal.
“An approved O-1 means an approved EB-1A.”	A prior O-1 is “a relevant consideration … not determinative.” The immigrant standard is higher.
“Meeting three criteria means approval.”	Meeting three criteria “alone does not establish” eligibility. Step 2 decides.
“More documents means a stronger case.”	USCIS warns the opposite. Persuasion beats poundage.
“I’m too young / too early in my career.”	The Manual states a person “may be very young or early in his or her career and still be able to show sustained acclaim.”

Seven red flags to fix before you file

- ☐ Any evidence you paid for — awards, memberships, media placements.
- ☐ Recommendation letters that share phrasing, structure, or rhythm.
- ☐ Metrics you cannot document with a source.
- ☐ A field of endeavor defined so narrowly that the peer group looks constructed.
- ☐ A criterion claimed on a single thin item “to reach three.”
- ☐ Publications in venues you have not screened for predatory practices.
- ☐ A record whose most recent recognition predates the filing by more than two years.

The bottom line

Every item on these lists is fixable before filing and expensive afterward. Audit first, file second.

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CHAPTER

11

Timelines, Fees & the Visa Bulletin

What it costs, how long it takes, and the one variable you do not control.



Timelines vary by case, service center, and country of chargeability — always check the current Visa Bulletin.

Figure 11.1 — The EB-1A journey end to end.

The filing

EB-1A runs on **Form I-140**, Immigrant Petition for Alien Worker. A standalone I-140 can be filed online; if you are filing premium processing or other forms together, file by mail. Approval establishes your **priority date** — the place in line that controls everything downstream.

Costs — verify every figure before you file

> **Snapshot — fees as verified July 2026**
>
> **Form I-140 filing fee:** $715
>
> **Asylum Program Fee (paid with the I-140):** $600 standard · $300 for small employers (25 or fewer

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full-time-equivalent employees — the bracket most individual self-petitioners fall into) · $0 for nonprofits. Paying the wrong tier causes rejection at intake.

Premium processing (Form I-907, optional): 15-business-day adjudication window. A fee adjustment applies to filings postmarked on or after March 1, 2026 — currently $2,965 for the I-140.

Payment method note: USCIS has moved away from paper checks and money orders for mailed filings — pay by card (G-1450) or ACH (G-1650) unless exempt.

Fees change. Confirm at uscis.gov/feecalculator and the current Form G-1055 before you send anything.

Timing

- **Preparation:** typically 2–6 months of evidence building and drafting — the part you control, and the part that decides the outcome.
- **Adjudication:** 15 business days with premium processing; otherwise months, varying by service center. Premium processing buys speed, not favor: the standard is identical.
- **After approval:** you file Form I-485 (adjustment of status, if you are in the U.S. and your date is current) or go through consular processing abroad.

The Visa Bulletin — the variable you do not control

Approval is not the same as a green card. If more people want visas in a category than Congress allocates, a queue forms — and your **country of chargeability** determines how long you wait. The Department of State publishes the **Visa Bulletin** monthly; it moves, and it can move backwards ("retrogression").

Snapshot — July 2026 Visa Bulletin (EB-1)

Worldwide, Mexico, Philippines: Current — no wait for a visa number.

China: Final Action Date of June 1, 2023 (advanced two months).

India: Final Action Date of October 15, 2022 — retrogressed two months; the Department of State has warned of possible further retrogression before the fiscal year ends September 30, 2026.

Context: EB-2 India is unavailable for the remainder of FY2026 — a principal reason Indian-born professionals are moving toward EB-1A and filing early to secure a priority date.

This box is a snapshot, not a forecast. Check travel.state.gov every month — the bulletin is the single most volatile fact in this guide.

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Policy changes — and how to stay current

EB-1A's core standard has been stable, but the guidance around it moves. Two USCIS policy updates (September 2023 and October 2024) reshaped how officers treat STEM comparable evidence, team awards, past memberships, published material, and artistic exhibitions — all of which are already reflected in this guide. In June 2026 a federal court vacated three unrelated USCIS policy memoranda, and the agency is complying pending review; that decision does not alter the extraordinary-ability chapter, but it is a reminder that **policy is a moving target**. Before you file, spend ten minutes on the USCIS Policy Manual updates page. It is the cheapest due diligence in immigration.

The bottom line

You control preparation quality and filing date. You do not control the bulletin. Build well, file when ready, and check the primary sources the week you send.

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CHAPTER

12

Your Self-Assessment

Score the record you have. Then build the record you need.

Work through this with your CV, your tax documents, and your evidence folder open. Answer as an officer would — with documents, not intentions.

Part A · The criteria matrix

For each criterion, mark your honest status: ✓ **Fully evidenced** (documents in hand today) · ⚠️ **Partially evidenced** (real but incomplete — a build target) · ✗ **Not applicable**.

#	Criterion	Status	Evidence I hold today	What is missing
1	Awards & prizes			
2	Memberships			
3	Published material about me			
4	Judging others' work			
5	Original contributions			
6	Scholarly articles			
7	Artistic exhibitions			
8	Leading / critical role			
9	High remuneration			
10	Commercial success (perf. arts)			

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Part B · The final-merits audit

- ☐ My field of endeavor is written in one sentence and used identically throughout my materials.
- ☐ Every impact claim in my file carries a number and a source document.
- ☐ At least one contribution has a complete adoption trail: artifact → adopters → metrics → independent commentary.
- ☐ My acclaim is national or international in scope — not organizational or local.
- ☐ I have documented recognition from within the last 24 months.
- ☐ My strongest evidence comes from independent third parties, not from me.
- ☐ I have identified 6–8 letter writers, weighted toward independent experts.
- ☐ I can name the top few percent of my field and explain, with evidence, why I belong among them.
- ☐ Nothing in my file was purchased: no paid awards, memberships, or media.
- ☐ I have checked uscis.gov for policy changes within the last 30 days.

Part C · Score and read your result

Score **3 points** per ✓ criterion, **1 point** per ⚠️ criterion, and **1 point** per checked box in Part B. Maximum: 40.

Score	Where you stand	What to do next
28–40	Strong. Multiple criteria fully evidenced, final-merits story intact.	Assemble and seek professional review. Your work now is curation and narrative.
18–27	Buildable. The foundation is real; the proof has gaps.	Run the 90/180-day sprint from Chapter 7, targeting your ⚠️ criteria. Do not file yet.
10–17	Early. Genuine accomplishment, insufficient external acclaim.	Spend 12–24 months building acclaim deliberately — judging, publishing, press, memberships. Evaluate EB-2 NIW in parallel.
Below 10	Not yet.	This is information, not a verdict. Build the record, or consider other categories with an attorney.

> **Strategy note — the honest score**
>
> Score yourself the way an officer would: if the document is not in your folder, it does not exist. An honest 22 with a 90-day plan beats an optimistic 30 that collapses under an RFE.

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Where to Go From Here

You now hold the framework that every strong EB-1A petition runs on: the standard, the ten criteria as USCIS actually interprets them, the two-step test, the final-merits story, and a build plan with a clock on it. The next step is the work — and the work is specific to you.

THE AIVASS EB-1A LIBRARY

This Master Guide is the foundation. Each companion product goes deep on one stage of the build:

Product	Best for	What it does
Eligibility Self-Assessment Workbook	Beginners	Extends Chapter 12 into a full scored diagnostic with decision paths.
Evidence Mapping Workbook	DIY applicants	Turns Chapters 4–5 into a working evidence-to-criteria system.
Field of Endeavor Definition Guide	Professionals	Drills Chapter 7's field formula until your definition is defensible.
Recommendation Letter Toolkit	Applicants & lawyers	Briefing memos, independence hierarchy, corroboration mapping.
Personal Statement Framework	Applicants	Structures intent, future work, and U.S. benefit.
Petition Assembly Checklist	DIY applicants	Chapter 8 as an operational, exhibit-by-exhibit QC pass.
100 AI Prompts for EB-1A	Everyone	The full prompt library behind Chapter 9.
Law Firm Toolkit (B2B)	Immigration firms	Intake, criteria matrices, RFE risk register, team workflow.

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Sources & Verification

Every legal statement in this guide traces to a primary authority below. All sources were accessed and verified on **July 8, 2026**. Where practitioner commentary informed context, it is identified as secondary and non-authoritative.

Source	Publisher	Authority	What it governs here
USCIS Policy Manual, Vol. 6, Part F, Ch. 2 — Extraordinary Ability uscis.gov/policy-manual/volume-6-part-f-chapter-2	USCIS	Primary — agency guidance	Eligibility, the ten criteria, comparable evidence, two-step analysis, final merits, letters, athlete-to-coach rule.
8 C.F.R. § 204.5(h) eCFR (Title 8)	GPO / NARA	Primary — regulation	Definition of extraordinary ability, the ten criteria, comparable evidence, self-petition.
INA § 203(b)(1)(A) · 8 U.S.C. § 1153(b)(1)(A)	U.S. Congress	Primary — statute	The three prongs: acclaim, continuing work, substantial benefit.
Employment-Based Immigration: First Preference EB-1 uscis.gov	USCIS	Primary — agency	Self-petition confirmation; no PERM; EB-1A/1B/1C distinctions.
Form I-140 page & instructions · Fee Schedule G-1055 · Fee Calculator	USCIS	Primary — agency	Filing mechanics, fees, Asylum Program Fee tiers, payment methods.
Policy Alerts, Sept. 12, 2023 and Oct. 2, 2024	USCIS	Primary — policy	STEM comparable evidence and final-merits factors; team awards; past memberships; published material; “artistic” exhibitions.
Kazarian v. USCIS, 596 F.3d 1115 (9th Cir. 2010)	9th Circuit	Primary — judicial	The two-step evidentiary analysis applied nationwide.
Visa Bulletin, July 2026	U.S. Dep’t of State	Primary — agency	Priority dates and retrogression. Volatile: re-check monthly.
17 U.S.C. § 105 · Georgia v. Public.Resource.Org (2020)	Congress / SCOTUS	Primary	Public-domain status of U.S. government works and legal edicts.
Immigration law-firm alerts and practitioner commentary (2024–2026)	Various	Secondary — non-authoritative	Context and cross-confirmation only. Never the basis of a legal statement in this guide.

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How to cite USCIS yourself

- USCIS Policy Manual, Vol. 6, Part F, Ch. 2 (Extraordinary Ability), uscis.gov/policy-manual/volume-6-part-f-chapter-2 (accessed [date]).
- 8 C.F.R. § 204.5(h)(3) (current through [date] via eCFR).
- INA § 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A).
- Kazarian v. USCIS, 596 F.3d 1115 (9th Cir. 2010).

Final reminder

This guide is educational. It is not legal advice, and AiVass LLC is not a law firm. Before filing, have a licensed U.S. immigration attorney review your petition, and verify every fee, date, and policy statement at uscis.gov. Guidance changes; your case deserves current law.

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